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LAW 101: The Nigerian Legal System - Sources, Courts and Legal Reasoning

How law is made, applied and argued in Nigeria, explained for first-year law students

FACULTY PRIMER

Faculty Primer

Faculty of Law
Public Law | 100L

Written for students, by students.

Practical notes, worked examples, practice questions and a revision plan.

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Why this pack exists

LAW 101 is where law students learn that law is a system of sources and reasoning, not a list of rules. This pack covers the sources of Nigerian law, the court hierarchy, the doctrine of precedent, statutory interpretation and the IRAC method, with worked examples you can imitate in tutorials.

This is a student-written study companion, not a reproduced lecture handout or a leaked examination paper. Use it to organise the topics you are taught, practise the kind of thinking your course rewards, and walk into class with better questions.

What you will be able to do

- Identify and rank the sources of Nigerian law, including the Constitution, legislation, case law, custom and received English law.
- Explain the jurisdiction and hierarchy of Nigerian courts from the Supreme Court downwards.
- Apply the doctrine of stare decisis and distinguish ratio decidendi from obiter dictum.
- Structure a legal answer using issue, rule, application and conclusion.

How to use this pack

1. Skim the whole pack once in 20 minutes so you know what is inside.
2. Work through one section at a time with your lecture note and recommended text beside you.
3. Attempt the practice questions before reading the answers. Mark what you missed.
4. Use the final checklist to plan your revision week, one tick per study session.

> **Confirm your official course outline**
> Course codes, credit units and outlines can differ by department and session. Treat this pack as supplementary support and confirm the current outline with your lecturer, course rep or departmental handbook before an assessment.

Sources of Nigerian law

A source of law is an authority from which legal rules derive their validity. Hierarchy matters: a rule from a lower source cannot override a higher one.

- The Constitution: supreme and directly enforceable; inconsistent legislation is void to the extent of inconsistency.
- Legislation: Acts of the National Assembly, state laws, subsidiary legislation and bye-laws.
- Judicial precedent: decisions of superior courts create binding rules within their jurisdiction.
- Customary law: recognised as a source where it is not repugnant to natural justice, equity and good conscience, and is not incompatible with existing law.
- Received English law: common law, doctrines of equity and statutes of general application in force in England before 1 January 1900, received subject to local circumstances.
- Islamic law: applicable in the northern states and to personal matters where the parties submit to it.

> **Exam habit**
> When asked about sources, rank them. A Constitution-first answer shows you understand supremacy; a flat list does not.

Courts and jurisdiction

Jurisdiction is the power of a court to hear a matter. A court without jurisdiction cannot validly decide anything, however correct its reasoning.

- Supreme Court: apex court, mainly appeals; its decisions bind all lower courts.
- Court of Appeal: appeals from the Federal High Court, state High Courts, and election and other specialised tribunals.
- Federal High Court: federal matters including revenue, customs, banking, company law and certain fundamental rights applications.
- State High Courts: unlimited jurisdiction over civil and criminal matters within the state, subject to the Constitution.
- Magistrate and district courts: limited civil and criminal jurisdiction.
- Customary and Sharia courts of appeal: appeals in customary and Islamic personal law matters.

Precedent and legal reasoning

Stare decisis means standing by decided matters. A court must follow the ratio of a superior court in the same hierarchy, but only the ratio.

The ratio decidendi is the legal principle necessary to the decision. Obiter dicta are passing remarks that do not bind, though they may persuade.

Distinguishing a case is the advocate's main tool: show that the material facts differ so the earlier rule does not apply. Overruling is different - a higher court rejects the earlier rule itself.

- Ratio binds; obiter persuades.
- A court is bound by decisions of courts above it, not by courts of coordinate or lower rank.
- Persuasive precedent includes decisions from other common-law jurisdictions and the Privy Council.
- Statutory interpretation: literal rule, golden rule and mischief rule; also purposive interpretation.
- IRAC structure: Issue, Rule, Application, Conclusion. Never write the conclusion before the application.